No. 97-930

Supreme Court, U.S.
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IN THE SUPREME COURT OF THE UNITED STATES
October Term, 1997

VICTORIA BUCKLEY, Colorado Secretary of State,
Petitioner,
vs.
AMERICAN CONSTITUTIONAL LAW FOUNDATION, INC.; DAVID AITKEN; JON BARAGA; CRAIG ELEY; JACK HAWKINS; LONNIE HAYNES; ALDEN KAUTZ; and BILL ORR, individually and as guardian of WILLIAM DAVID ORR,
Respondents.

On Writ of Certiorari to
The United States Court of Appeals
For the Tenth Circuit

PETITIONER'S BRIEF

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56 pp

QUESTION PRESENTED FOR REVIEW

Whether the State of Colorado may constitutionally regulate the process of circulating initiative petitions by requiring that: (1) petition circulators who verify the signatures of petition signers must be registered electors; (2) petition circulators must wear identification badges; and (3) proponents of an initiative must file reports disclosing the amounts paid to circulators and the identity of petition circulators.

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PETITIONER'S BRIEF

OPINIONS BELOW

The district court's decision is reported at 870 F. Supp. 995 (1994), and appears at Pet. App. B. The Tenth Circuit's decision is reported at 120 F.3d 1092 (1997), and appears at Pet. App. A.

JURISDICTION

The Tenth Circuit entered judgment on July 28, 1997. The State timely petitioned for rehearing with a suggestion

for rehearing in banc on August 8, 1997. The Tenth Circuit denied the petition for rehearing on September 8, 1997. The State petitioned for certiorari on December 4, 1997. This Court granted certiorari on February 23, 1998. Jurisdiction rests on 28 U.S.C. § 1254(1).

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

U.S. Const. amend. I; Colo. Const. art V, § 1(6); Colo. Rev. Stat. § 1-40-112 (1997), and Colo. Rev. Stat. § 1-4-121 (1997). The texts of these provisions are set out at Pet. App. D.

STATEMENT OF THE CASE

Colorado became a State in 1876. Thirty-four years later, in 1910, the citizens of Colorado amended her Constitution to allow for statutory and constitutional changes through the use of citizen initiatives. 1910 Colo. Sess. Laws 11. As originally adopted, the law required that eight percent of eligible voters sign a petition to propose a measure; that each signer must be a qualified elector; and that each person's residence and the date of signing be included on the petition. *Id.* A qualified elector was a person who was over the age of 21, a citizen of the United States, and "resided in the state twelve months immediately preceding the election at which he offers to vote and in the county, city, town, ward or precinct, such time as may be prescribed by law." Colo. Const. art. VII, § 1 (1902).

Colorado courts quickly determined that the Colorado General Assembly could enact laws to implement these constitutional provisions. *In re House Resolution #10*, 50

Colo. 71, 114 P. 293, 295 (Colo. 1911). *See also Committee for Better Health Care v. Meyer*, 830 P.2d 884, 893 (Colo. 1992). The Colorado General Assembly enacted its first law implementing the initiative process in 1913. 1913 Colo. Sess. Laws 310. It required that each petition contain a warning that it was a felony for anyone to sign a petition under a false name, to knowingly sign his or her name more than once for the same measure, or to sign a petition when he or she was not a qualified elector. *Id.* It established a procedure by which qualified electors could protest the determination that the petition was insufficient. The General Assembly also included a provision that imposed criminal penalties if any person willfully violated any provision of the law. *Id.*

In 1941, the General Assembly made it illegal to pay petition circulators. 1941 Colo. Sess. Laws 480. In 1971, the General Assembly attempted to change the requirement that signers and circulators be registered electors, not just qualified electors. The Colorado Supreme Court, however, held that this change could not be made without amending the Colorado Constitution. *Colorado Project-Common Cause v. Anderson*, 178 Colo. 1, 495 P.2d 220 (1972).

In 1980, Colorado's citizens amended the Colorado Constitution by adopting a comprehensive list of reforms to Colorado's initiative and referendum process.[1] *Inter alia*, the amendment required that persons who signed and circulated initiatives be registered. The amendment,

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[1] Initiatives relate to constitutional and statutory changes proposed by citizens. Referenda, generally, involve measures referred to the citizens by the General Assembly. These processes and the General Assembly staff's ballot analysis of the 1980 amendment are found at Pet. App. E1-E11.

however, reduced the number of signatures required to place a measure on the ballot from 8% to 5%. Thus, "[a]lthough fewer persons would be eligible to sign petitions, the relative number of signatures required [was made] smaller." Pet. App. E6. The amendment also "place[d] greater responsibility on the part of those persons circulating petitions to determine whether the individual signing the petition is eligible to sign the petition." *Id.* at E9.

The state statutory prohibition against paid circulators was challenged after the 1984 election cycle. This Court struck down that prohibition in *Meyer v. Grant*, 486 U.S. 414 (1988). Since *Meyer*, Colorado has witnessed a significant increase in the use of the initiative process. *See infra,* note 3.

Complaints about abuses committed by circulators also increased. T.II.102-03, 114.[2] The Secretary of State and the Colorado Attorney General found it difficult to address these complaints. As the then elections officer for the Secretary of State testified at trial, "[t]here was nothing we could do about the complaints." *Id.* at 102. She further explained:

> We didn't have any idea of what the circulators' names were. They could not be identified. Even the ones that were brought up in hearings, there was no

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[2] There was a two-day trial in the district court, below. The first day's trial transcript will be referenced as T.I.(page(s)), and the second day will be referenced as T.II.(page(s)). The trial transcripts can be found in the record from the Tenth Circuit at Pro-Se Plaintiff's Appendix I and II.

> identification, even when they had pictures of the circulators. So there was no way of knowing who was doing it.

Id. In 1992, there "was a very flagrant" abuse "of the initiative process." *Id.* at 115. The Attorney General issued nine warrants. However, "there was no way of getting a hold of three of those individuals. So those warrants went without serving them." *Id.* Three of the circulators who were caught were convicted of forgery. *Id.* at 116. In the 1990 to 1992 time frame, the Secretary of State referred some 15 to 20 cases of potential fraud involving initiatives to the Attorney General for prosecution. *Id.* at 141.

Colorado also experienced a surge in the number of citizen-initiated measures placed on the ballot. In 1992, a record ten initiatives were placed on the ballot.[3]

The General Assembly responded to these problems in 1993, amending the initiative statutes by adding two requirements. First, the General Assembly required circulators to wear badges so that they could be identified:

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[3] Eight were placed on the ballot in 1994, and eight in 1996. (Actually nine made the ballot in 1994 but one measure appeared again in 1996.) There also has been a notable surge in the number of ballot titles set by the Title Setting Board. In 1993-94, the number was 42. It jumped to 62 in 1995-96. The State requests the Court to take judicial notice of this information. It is a matter of public record maintained by the Colorado Secretary of State and readily subject to confirmation. *See* Robert L. Stern, Eugene Gressman, Stephen M. Shapiro & Kenneth S. Geller, *Supreme Court Practice* 555-57 (7th ed. 1993).

(a) All circulators who are not to be paid for circulating petitions concerning ballot issues shall display an identification badge that includes the words "VOLUNTEER CIRCULATOR" in bold-faced type which is clearly legible and the circulator's name.

(b) All circulators who are to be paid for circulating petitions concerning ballot issues shall display an identification badge that includes the words "PAID CIRCULATOR" in bold-faced type which is clearly legible, the circulator's name, and the name and telephone number of the individual employing the circulator.

Colo. Rev. Stat., § 1-40-112(2). Second, the General Assembly imposed reporting requirements on the proponents of initiatives using paid circulators:

(1) The proponents of the petition shall file with the official who receives filings under the "Campaign Reform Act of 1974", article 45 of this title, for the election the name, address, and county of voter registration of all circulators who were paid to circulate any section of the petition, the amount paid per signature, and the total amount paid to each circulator. The filing shall be made at the same time the petition is filed with the secretary of state. Any payment made to circulators is an expenditure under article 45 of this title.

(2) The proponents of the petition shall sign and file monthly reports with the secretary of state, due ten days after the last day of each month in which petitions are circulated on behalf of the proponents by paid circulators. Monthly reports shall set forth the following:

(a) The names of the proponents;

(b) The name and the residential and business addresses of each of the paid circulators;

(c) The name of the proposed ballot measure for which petitions are being circulated by paid circulators; and

(d) The amount of money paid and owed to each paid circulator for petition circulation during the month in question.

Colo. Rev. Stat., § 1-40-121.

The plaintiffs brought suit in the United States District Court for the District of Colorado, making a number of challenges to Colorado's initiative law. Relevant to the questions presented, the district court first noted that this Court "has not applied the strict scrutiny standard to all legislation affecting the right to vote and the freedom of association with others for political purposes. The state's interest in fair, honest and orderly elections has been recognized as a justification for some burdens on political liberty." Pet. App. B17 (citing, *inter alia*, *Storer v. Brown*, 415 U.S. 724 (1974); *Anderson v. Celebrezze*, 460 U.S. 780 (1983); *Burdick v. Takushi*, 504 U.S. 428 (1992)).

Indicating that it would apply the balancing test set forth in *Burdick*, the district court then considered the particular provisions challenged by the plaintiffs.

Starting with the State's requirement that circulators wear badges, the district court found that the "plaintiffs have adequately demonstrated that compelling circulators to wear identification badges inhibits participation in the political process." Pet. App. B20. In making this finding, the court referenced testimony by two individuals who testified that they knew of others who were unwilling to wear badges while circulating petitions.

The district court dismissed the State's rationales for the requirement. It acknowledged that the State had presented evidence of circulator abuse and the inability to identify the circulators involved in that abuse. *Id.* However, the district court then went on to remark that the State's "interest in pursuing these matters is insufficient under the strict scrutiny standard." *Id.* The court further explained: "The [State's] concern that some circulators may use deliberate falsehoods to obtain signatures does not justify this burden on all circulators." *Id.*

The district court then turned to the State's requirement that circulators be registered. Observing that the requirement was made part of Colorado's Constitution in 1980, the district court reasoned that since there was nothing in the United States Constitution requiring the States to provide for initiatives or referenda, Colorado citizens were free to limit participation in the petitioning process to registered electors. Pet. App. B22.

Lastly, the district court addressed the State's reporting requirements. The district court acknowledged that:

> The legislative history shown in the record and the evidence presented at trial show that since *Meyer v. Grant* the circulation of initiative petitions has become a business and proponents of several petitions, particularly those seeking authorized gambling, have hired contractors to do the circulation.
>
> Given the business of circulation for hire, there is an interest in compelling disclosure by the proponents of the persons or entities being hired, not only to prevent fraud but to give the public information concerning who the principal proponents are and what kind of financial resources may be available to them. What may appear to be grassroots support might in actuality be well financed special interests with hidden agenda.

Pet. App. B23. The district court went on to hold, however, that this "legitimate interest" is not advanced by the disclosure of the names and addresses of the circulators. "What is of interest is the payor, not the payees." *Id.*

The district court went on to strike down the final reporting requirement, a report filed at the time the petitions are filed, to the extent that it involved the identification of circulators. It also struck down the monthly reporting requirements in their entirety. The district court found them "burdensome and involv[ing] an additional expense to those supporting an initiative or referendum petition." Pet. App. B24. Thus, "[t]he monthly reports are restrictions on core political speech and are invalid." *Id.* Both sides appealed.

The Tenth Circuit began by rejecting plaintiffs' argument that *Meyer v. Grant*, 486 U.S. 414 (1988), requiring exacting scrutiny of restrictions on "core political speech," was controlling in this case. Citing the body of case law relied upon by the district court, *Storer v. Brown*, 415 U.S. 724 (1974), *Burdick v. Takushi*, 504 U.S. 428 (1992), and *Anderson v. Celebrezze*, 460 U.S. 780 (1983), in addition to the then recently decided *Timmons v. Twin Cities Area New Party*, 117 S. Ct. 1364 (1997), the Tenth Circuit opined that "[t]hus, the petition process is a ballot access vehicle, as well as an avenue for political expression." Pet. App. A22. The Tenth Circuit observed "the general rule that states have the power to regulate their elections and access to their ballots," *id.*, and that "Colorado has a strong interest in ensuring both candidate elections and ballot issues are run fairly, efficiently, and honestly." *Id.* at A23. "To subject every petition regulation to exacting scrutiny would tie Colorado's hands in seeking to assure equitable and efficient elections on ballot issues." *Id.* at A24.

Applying the flexible standard recognized by the cases noted above, the Tenth Circuit proceeded to analyze the initiative regulations at issue. As relevant here, the Tenth Circuit first looked to Colorado's registration requirement and struck it down, reversing the district court on this issue. The Tenth Circuit rejected the district court's ruling that because Colorado created the right to petition by initiative in the first instance, it could condition that right however it chose. Relying on its earlier decision in *Meyer v. Grant*, 828 F.2d 1446 (1987), the Tenth Circuit opined that "even though the initiative and referendum process is not guaranteed by the United States Constitution, Colorado's choice to reserve it does not leave the state free to condition its use by impermissible restraints on First Amendment activity." Pet. App. A28. The Tenth Circuit also found

irrelevant the fact that the registration requirement was enacted by the voters as an amendment to Colorado's Constitution. "The voters may no more violate the United States Constitution by enacting a ballot access issue than the general assembly may by enacting legislation." *Id.* at A28-A29.

The Tenth Circuit based its ruling of unconstitutionality on the fact that "[t]he registration requirement has a discriminatory effect." *Id.* at A29. The Tenth Circuit found that because there were a number of qualified electors (see *supra* page 2) who were not registered voters, the registration requirement "limits the number of voices to convey the proponents message, limiting the audience the proponents can reach and making it less likely they will be able to gather the required number of signatures to place a measure on the ballot." *Id.* The Tenth Circuit found that such limitations made Colorado's registration requirement subject to "exacting scrutiny." *Id.*

The Tenth Circuit rejected the State's argument that the registration requirement provided a vehicle for insuring that circulators were in fact residents of Colorado, and that it helps insure that circulators can be reached if needed to testify or otherwise explain their signature collection activities. Describing this interest as "potentially compelling," the Tenth Circuit found that Colorado failed to satisfy narrow tailoring under the court's exacting scrutiny because "[t]he state's asserted interest could be more precisely achieved by simply imposing a residency requirement for circulators." Pet. App. A30.[4]

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[4] That was, of course, what was required when Colorado first adopted the initiative process in 1910.

The Tenth Circuit next turned to the badge requirement and upheld the district court's ruling that this requirement violated the First Amendment. The court rejected the State's argument that this Court had already upheld badge requirements in *Riley v. National Federation of the Blind of North Carolina*, 487 U.S. 781, 799 n.11 (1988), and *Martin v. City of Struthers*, 319 U.S. 141, 148 n.14 (1943). The Tenth Circuit found "the footnotes on which defendants rely are dicta." Pet. App. A32.

The Tenth Circuit also rejected the State's argument that there is no constitutional right to circulate petitions anonymously. Relying upon *McIntyre v. Ohio Elections Comm'n*, 115 S. Ct. 1511 (1995), the Tenth Circuit found that "[c]irculating a petition is akin to distributing a handbill." Pet. App. A35. The Tenth Circuit then remarked:

> Conditioning circulation upon wearing an identification badge is a broad intrusion, discouraging truthful, accurate speech by those unwilling to wear a badge, and applying regardless of the character or strength of an individual's interest in anonymity.

Id. at A36.

The Tenth Circuit then turned to the reporting requirements and: found that "exacting scrutiny" was required; upheld the district court's total invalidation of the monthly reporting requirements; and further upheld the district court's invalidation of that part of Colo. Rev. Stat., § 1-40-121(1), that called for the identification and addresses of petition circulators. It rejected the State's argument that such reporting provisions were legitimate disclosure

requirements approved by such cases as *Buckley v. Valeo*, 424 U.S. 1 (1976), and found:

> Much like requiring identification badges, compelling the disclosure of the identities of every paid circulator chills paid circulation, a constitutionally protected exercise.

Pet. App. A40.

It is important to note that the Tenth Circuit and district court upheld Colorado's requirement that petition circulators sign affidavits that both identify them and list their address. The requirement is contained at Colo. Rev. Stat., § 1-40-111(2):

> To each petition section shall be attached a signed, notarized, and dated affidavit executed by the registered elector who circulated the petition section, which shall include his or her printed name, the address at which he or she resides, including the street name and number, the city or town, the county, and the date he or she signed the affidavit; that he or she has read and understands the laws governing the circulation of petitions; that he or she was a registered elector at the time the section of the petition was circulated and signed by the listed electors; that he or she circulated the section of the petition; that each signature thereon was affixed in the circulator's presence; that each signature thereon is the signature of the person whose name it purports to be; that to the best of the

> circulator's knowledge and belief each of the persons signing the petition section was, at the time of signing, a registered elector; and that he or she has not paid or will pay, directly or indirectly, any money or other thing of value to any signer for the purpose of inducing or causing such signer to affix his or her signature to the petition. The secretary of state shall not accept for filing any section of a petition that does not have attached thereto the notarized affidavit required by this section. Any signature added to a section of a petition after the affidavit has been executed shall be invalid.[5]

The Tenth Circuit found "little, if anything, in the record to support plaintiffs' claim that the affidavit requirement significantly burdens political expression by decreasing the pool of available circulators." Pet. App. A27.[6] The Tenth Circuit explained:

> A state has a strong, often compelling, interest in preserving the integrity of its electoral system. See Timmons, . . . 117 S. Ct. at 1366. Circulators play an important role in ballot issue elections -- they are solely responsible for gathering the number and type of signatures required to place an issue on the ballot. Indeed, as we have previously noted, circulators are, in effect, entrusted with personal responsibility to prevent irregularities in the petition process. See Loonan [v. Woodley], 882 P.2d [1380] at 1388 [(Colo. 1994)]; Committee on Better Health Care [v. Meyer], 830 P.2d [884] at 894 [(Colo. 1992)]; C.R.S.A. § 1-40-116(a). The affidavits "ensure that circulators, who possess various degrees of interest in a particular initiative exercise special care to prevent mistake, fraud, or abuse in the process of obtaining thousands of signatures of only registered electors throughout the state." Loonan, 882 P.2d at 1388-89. Given the responsibility circulators bear in ensuring the integrity of elections involving ballot issues, and given the fact that the affidavit requirement is a reasonable, nondiscriminatory restriction, we conclude plaintiffs' challenge fails.

Pet. App. A28. The Tenth Circuit did not explain why public disclosure of a circulator and his or her address was acceptable when part of the affidavit requirement, Colo. Rev. Stat., § 1-40-111(2), but was unacceptable when made part of a report filed with the Secretary of State, Colo. Rev. Stat., § 1-40-121.

SUMMARY OF ARGUMENT

This Court's decision in *Meyer v. Grant*, 486 U.S. 414 (1988), should not control the Court's decision in this case. *Meyer* focused on the communicative aspects of petition

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5 An example of an affidavit can be found at J.A. 33.

6 Of course, the requirement that the affidavit contain a sworn statement that the circulator is a registered elector was invalidated.

circulation and dealt with prohibiting an entire class of speakers -- paid circulators -- from engaging in a form of political speech. The Court did not address the procedural aspects of the initiative process, which are at issue here.

The initiative process can and must be subject to reasonable regulation. Since this Court's decision in *Meyer v. Grant*, lawmaking by initiative has increased substantially. Along with it, fraud and abuse of the process have increased. Those States that permit lawmaking by initiative are witnessing some of the very problems identified by the Framers when they rejected pure popular democracy in favor of the representative democracy upon which the Constitution is founded.

Colorado jealously protects the rights of its citizens to amend Colorado's Constitution and statutes through the initiative process. It regulates petition circulators only as necessary to preserve the integrity of the process. Petition circulators in Colorado serve a vital role. They are critically important in insuring that a host of procedural protections that are part of Colorado's initiative process are satisfied including, *inter alia*, that only valid signatures are collected, that nothing of value is paid to the signers in return for their signature, and that the signatures are collected in a manner free from fraud or other abuse.

The flexible test adopted by this Court for assessing ballot access regulations must apply to the regulation of petition circulators. Regulations that determine which initiative measures will appear on the ballot are no different than regulations that determine which candidates will similarly appear. The flexible standard allows the States to regulate their electoral processes to insure their integrity. So long as state regulations are non-discriminatory and serve an

important function in preserving this integrity, this Court has consistently upheld those regulations.

The specific Colorado regulations at issue here are non-discriminatory and serve an important function in preserving the integrity of Colorado's initiative process. This Court should find that the First Amendment of the United States Constitution does not invalidate Colorado's reasonable regulation of the initiative process including the three measures at issue here.

ARGUMENT

I. THIS CASE INVOLVES THE REGULATION OF THE ELECTORAL PROCESS, NOT PROHIBITIONS ON CORE EXPRESSION.

This Court in *Meyer v. Grant* addressed Colorado's complete prohibition of paid circulators. Relying primarily upon *Buckley v. Valeo*, 424 U.S. 1 (1976), the Court struck down this prohibition because it unduly restricted "core political speech." *Meyer*, 486 U.S. at 422.

The Court did not consider or address an entirely different dimension of the initiative process: the electoral procedures by which initiatives are qualified for the ballot. It is those procedures -- designed to protect the integrity of the State's initiative process -- that are at issue here.

II. THE INITIATIVE PROCESS CAN AND SHOULD BE SUBJECT TO REASONABLE REGULATION, PARTICULARLY AFTER THIS COURT'S DECISION IN *MEYER V. GRANT.*

There is no doubt that lawmaking by initiative is becoming more prominent in the country today. Some of the most contentious issues of the day, such as affirmative action, *Coalition for Economic Equity v. Wilson,* 122 F.3d 692 (9th Cir.), *cert. denied*, 118 S. Ct. 397 (1997), homosexual rights, *Romer v. Evans*, 116 S. Ct. 1620 (1996), and race relations generally, *see Arizonans for Official English v. Arizona*, 117 S. Ct. 1055 (1997), are with increasing frequency being decided by popular vote.

This phenomenon was substantially enhanced by this Court's decision in *Meyer v. Grant*, 486 U.S. 414 (1988). Colorado has witnessed a substantial increase in the use of the initiative process post-*Meyer*. *See supra* note 3.

As discussed more fully below, Colorado has strongly embraced the initiative process and it jealously protects the rights of Colorado citizens to engage in this process. Nevertheless, in recent years the initiative process has been subject to abuse and criticism nationwide. Before focusing on Colorado, this Court may wish to consider some of the problems engendered by the significant growth in the use of the initiative process generally.

Various commentators have observed what has occurred since Meyer was decided, in California and elsewhere:

> *Meyer's* timing was nearly as bad as its conclusion. In November 1988, only five months after the decision was

> rendered, twenty-nine measures appeared on the California ballot. The official pamphlet sent to voters explaining the measures totalled a burdensome 159 pages. Although the large number of propositions was not entirely attributable to the initiative process, seventeen of the twenty-nine having been placed on the ballot by the state legislature, the consequence was a downpour of criticism of the process. Responsible leaders predicted voters would be 'totally confused' or 'completely overwhelmed.'
>
> Aside from the total number of propositions, outrage was especially expressed because the initiatives had been placed on the ballot by professional circulators, sometimes representing narrow interest groups, rather than by the voluntary efforts of citizens.

Daniel Hays Lowenstein, Robert M. Stern, *The First Amendment and Paid Initiative Petition Circulators: A Dissenting View and a Proposal*, 17 Hastings Const. L.Q. 175, 176 (1989). Other commentators have echoed these concerns:

> The initiative process in practice confirms the prescience of the Framer's fears. Special-interest groups, aided by one-sided spending and voter ignorance, enjoy the very position of power that a representative government with its checks and balances is designed to prevent. The problem is exacerbated by deceptive wording, practices, and sloganeering, as

> well as by the large number and complexity of ballot measures. In addition, lack of deliberate mediation, debate, or individual commitment to a consistent or fair course of conduct further taints the republican ideal.

Julian N. Eule, *Checking California's Plebiscite*, 17 Hastings Const. L.Q. 151, 155 (1989). Mr. Eule followed up his criticism of the initiative process one year later with an example from the 1988 California election:

> A recent innovation in obfuscation has been the placement of competing propositions on the ballot, leaving voters completely baffled about which one does what. Perhaps the boldest effort at using this new tactic was engineered by Occidental Petroleum. The Los Angeles City Council had entered into a contract with Occidental giving the company the right to drill for oil beneath one of the city's coastal communities. Some concerned citizens collected signatures for an initiative (Proposition O) designed to bar the drilling. Occidental qualified a competing initiative (Proposition P) which incredibly appeared to oppose offshore drilling. Only the most perceptive of readers could grasp the hidden intent of Occidental's effort -- to mandate onshore drilling. Occidental then compounded its deception by advertising Proposition P as environmental legislation and entitling it "The Los Angeles Public Protection, Coastal Protection, and Energy Resources Initiative." It enlisted a former Governor,

> Edmund "Pat" Brown, to write a letter to the voters. Brown urged the defeat of Proposition O because, unlike Proposition P, it "contains not a single word in opposition to offshore oil drilling." A legal effort to strike Occidental's measure from the ballot as fraudulent was denied by a state court judge, who unwittingly damned the entire California process of direct democracy by concluding that Proposition P was "probably no more misleading than any other initiative." Any reader confused by this alphabetical parade and forced to refer back to the onset of this paragraph to discover whose initiative was Proposition O and whose was P, is experiencing but a small measure of the voters' bewilderment.

Julian N. Eule, *Judicial Review of Direct Democracy*, 99 Yale L.J. 1503, 1517-18 (1990). *See also* David B. Magleby, *Let the Voters Decide? An Assessment of the Initiative and Referendum Process*, 66 U. Colo. L. Rev. 13, 24 (1995) ("Many groups facing an initiative that they think they cannot defeat have begun to sponsor their own counter-initiative . . . . These groups not only pay to get this initiative qualified, they then spend disproportionately large amounts of money to persuade the voters that their counter-initiative is better, or at least confuse voters enough that they vote against all initiatives on the same topic").

While there do not appear to be any definitive studies on the matter, fraud in the initiative process appears to have increased since *Meyer*. *See* Richard B. Collins, Dale Oesterle, *Structuring the Ballot Initiative: Procedures That Do and Don't Work*, 66 U. Colo. L. Rev. 46, 74-75 (1995)

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(Colorado experience). *See also* Daniel Hays Lowenstein, Robert M. Stern, *The First Amendment and Paid Initiative Petition Circulators: A Dissenting View and a Proposal*, 17 Hastings Const. L.Q. 175, 189 (1989) (discussing abuses; also: "In summary, there is evidence, albeit fragmentary, that professional circulators produce a higher percentage of invalid signatures than volunteers"); K.K. DuVivier; *By Going Wrong All Things Come Right: Using Alternative Initiatives to Improve Citizen Law Makings* 63 U. Cin. L. Rev. 1185, 1221 (1995) ("Studies have shown that moneyed special interest groups have benefited most by the initiative process").

One commentator analyzing petition circulation in Florida post-*Meyer* made the following observations.

> Many supervisors of elections have noted a correlation between fraudulent signatures and paid signature gathering. Supervisors generally agree that paid signature gathering provides an incentive for fraud. In Leon County, fifty-two percent of the signatures gathered by paid workers on the casino-gambling petition were invalid. However, only ten percent of the signatures gathered by volunteers for the Save our Sealife petition were invalid. Election officials in Hillsborough and Leon counties have reported cases of apparent signature forgeries. In Leon County, pursuant to section 837.06, *Florida Statutes*, the State prosecuted five individuals for false official statements. Each individual confessed to signing names of registered voters to the petitions and entered plea bargains.

P.K. Jameson, Marsha Hosack, *Citizen Initiatives in Florida: An Analysis of Florida's Constitutional Initiative Process, Issues, and Alternatives*, 23 Fla. St. U. L. Rev. 417, 448-49 (1995).

It is important to note that the United States Constitution contains no citizen-initiative process. It is also important to note that the Framers rejected the very principle that this country should be founded upon a pure democracy model. Perhaps the most important discussion of this aspect of the Constitution is contained in Madison's discussion in Federalist No. 10. The principle reason for a republic as opposed to a pure democracy was to mitigate the negative effects of "factions." *The Federalist No. 10*, at 43 (Madison) (Bantam Classic ed. 1982). According to Madison, "[w]hen a majority is included in a faction, the form of popular government . . . enables it to sacrifice to its ruling passion or interest, both the public good and the rights of other citizens. To secure the public good, and private rights, against the danger of such a faction, and at the same time to preserve the spirit and the form of popular government, is then the great object to which our enquiries are directed." *Id.* at 45. Various commentators critical of the initiative process have noted the Framers' rejection of the pure democracy model and Madison's reasons for that rejection. *See, e.g.*, David B. Magleby, *Let the Voters Decide? An Assessment of the Initiative and Referendum Process*, 66 U. Colo. L. Rev. 13, 19-20 (1995); Julian N. Eule, *Judicial Review of Direct Democracy*, 99 Yale L.J. 1503, 1522-26 (1990).

The initiative process is jealously protected in Colorado. However, abuses in the process can and do occur, abuses that were foreseen by the Framers over 200 years ago. In order to protect the process, Colorado must take reasonable measures to eliminate this abuse. The State of Colorado

submits the information above to the Court only to show that the initiative process can and should be subject to reasonable regulation while being totally consistent with the United States Constitution.

III. COLORADO PROTECTS THE RIGHT OF ITS CITIZENS TO MAKE LAW THROUGH THE INITIATIVE PROCESS AND REGULATES THE PROCESS ONLY AS NECESSARY TO PROTECT ITS INTEGRITY.

The Colorado General Assembly's legislative declaration beginning Colorado's legislation regulating the initiative and referendum process, Colo. Rev. Stat., §§ 1-40-101 - 133, demonstrates the General Assembly's commitment to protecting the initiative process in Colorado:

> It is not the intention of this article to limit or abridge in any manner the powers reserved to the people in the initiative and referendum, but rather to properly safeguard, protect, and preserve inviolate for them these modern instrumentalities of democratic government.

Colo. Rev. Stat., § 1-40-101. Colorado's courts exhibit the same commitment. *See, e.g., Glendale v. Buchanan*, 195 Colo. 267, 578 P.2d 221, 224 (1978) ("The initiative power is expressly stated to be self-executing and the power of initiative is to be liberally construed to allow the greatest exercise of this valuable right").

Colorado regulates petition circulators only as necessary to preserve the integrity of the process. One of the principal regulations is the affidavit requirement which reflects the

important administrative role petition circulators play in the initiative process. Under Colorado's Constitution, to each petition:

> [s]hall be attached an affidavit of some registered elector that each signature there-on is the signature of the person whose name it purports to be and that, to the best of the knowledge and belief of the affiant, each of the persons signing said petition, was at the time of signing, a registered elector.

Colo. Const. art V, § 1(6). *See also* Colo. Rev. Stat., § 1-40-111(2) (quoted above at pp. 13-14). Thus, circulators serve a critically important role in insuring that only valid signatures are collected. Circulators are the only persons who can attest to the authenticity of petition signatures. *Loonan v. Woodley*, 882 P.2d 1380, 1385 (Colo. 1994). Circulators also insure that nothing of value is paid to the signers in return for their signature, Colo. Rev. Stat., § 1-40-111(2), and that the signatures are collected in a manner free from fraud or other abuse. Colo. Rev. Stat., § 1-40-130. *See* J.A. at 18-33 (example of petition with instructions). As noted by the Colorado Supreme Court in *Loonan*, the affidavit requirement described above (and upheld by the Tenth Circuit below) "does not explicitly document compliance with any of these statutory provisions. The purpose of the affidavit is the assurance the circulators were aware of their important role in implementing all of the statutory safeguards and in assuring the validity of the signatures they collect." *Loonan*, 882 P.2d at 1385.

Another important example of the degree to which Colorado law is pro-initiative is the lenient standard adopted by the Colorado Supreme Court in evaluating compliance

with initiative regulations. The Colorado Supreme Court requires only "substantial compliance" with the regulations applied to circulators. *Id.* at 1384.

The three regulations struck down by the Tenth Circuit that are at issue here, the registration requirement, the badge requirement, and the reporting requirement, will be addressed in detail below. They should be considered, however, in light of both the fact that Colorado's scheme as a whole is pro-initiative.

IV. A FLEXIBLE STANDARD SHOULD APPLY FOR EVALUATING REGULATION OF PETITION CIRCULATORS.

A very important factor in deciding this case is the standard of review that this Court will apply. The State submits that the appropriate standard is the flexible one applicable to regulation of the election process, discussed below, not the "exacting scrutiny" standard this Court applied in *Meyer*. *See* 486 U.S. at 420.

It is now well established that state regulation of the ballot is subject to "a more flexible standard." *Burdick v. Takushi*, 504 U.S. 428, 434 (1992). "Common sense, as well as constitutional law, compels the conclusion that government must play an active role in structuring elections; 'as a practical matter, there must be a substantial regulation of elections if they are to be fair and honest and if some sort of order rather than chaos, is to accompany the democratic process.'" *Id.* at 434 (quoting *Storer v. Brown*, 415 U.S. 724, 730 (1974)).

"[T]he rule fashioned by the Court to pass on constitutional challenges to specific provisions of election laws provides no litmus-paper test for separating those restrictions that are valid from those that are invidious . . . ." *Storer*, 415 U.S. at 730. The "analytical process" this Court applies is that the Court "must first consider the character and the magnitude of the asserted injury to rights protected by the First and Fourteenth Amendments that the plaintiff seeks to vindicate. It must then identify and evaluate the precise interests put forward by the State as justifications for the burden imposed by its rule." *Anderson v. Celebrezze*, 460 U.S. 780, 789 (1983). This Court then considers "the extent to which those interests make it necessary to burden plaintiff's rights." *Id.*

When a State's election-law regulations pose a "severe" burden on the constitutional rights asserted by a plaintiff, this Court will normally require the State to narrowly tailor its restriction and advance a compelling state interest in the process. *Timmons v. Twin Cities Area New Party*, 117 S. Ct. 1364, 1370 (1997); *Burdick*, 504 U.S. at 434. "Nevertheless, the State's important regulatory interests are generally sufficient to justify reasonable, nondiscriminatory restrictions." *Anderson*, 460 U.S. at 788; *Timmons*, 117 S. Ct. at 1370; *Burdick*, 504 U.S. at 434.

This Court has yet to rule that state regulation of the procedural aspects of the initiative process should be subject to this flexible election law standard. However, there is no functional difference in those state regulations that determine which candidates will be placed on the ballot and those state regulations that determine which citizen initiatives will be placed there.

The Sixth Circuit applied this Court's flexible-standard, election-law test in upholding various regulations imposed by

Michigan on its initiative process. *Taxpayers United for Assessment Cuts v. Austin*, 994 F.2d 291, 296-97 (6th Cir. 1993) (distinguishing *Meyer v. Grant* and upholding regulations as "nondiscriminatory, content-neutral restrictions on the plaintiffs' ability to use the initiative procedure that serve Michigan's interest in maintaining the integrity of its initiative process"). As explained by the Tenth Circuit in another case:

> We liken the circulation of a petition to the process of nomination. A candidate for office gets on the ballot by nomination.[7] An initiated constitutional amendment gets on the ballot by petition. However, the process for selecting or rejecting either the candidate or the measure cannot take place until both qualify for the ballot. At the same time, a candidate who is not nominated, and an initiated measure which fails to collect sufficient support, are never voted on by the electorate.

Montero v. Meyer, 861 F.2d 603, 607 (10th Cir. 1988), *cert. denied*, 492 U.S. 921 (1989). The Colorado Supreme Court recognizes "the similar nature of the right to vote and right of initiative and referendum and the common statutory goal of inhibiting fraud and mistake in the process of exercising these rights." *Loonan*, 882 P.2d at 1384.

The regulations at issue here do not prohibit an entire class of persons from participating in Colorado's initiative process like the ban on paid-circulators at issue in *Meyer v. Grant*. Nor do those regulations constitute a "direct regulation on the content of speech" as was at issue in *McIntyre v. Ohio Elections Comm'n*, 115 S. Ct. 1511, 1518 (1995) (striking down prohibition against anonymous leafletting). Rather, these regulations "control the mechanics of the electoral process," *id.*, as they relate to initiatives and are, therefore, subject to the flexible standard discussed above.

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[7] Candidates also obtain access to the ballot by petition. *See, e.g.*, Colo. Rev. Stat., § 1-4-801.

V. THE REGULATIONS AT ISSUE ARE SUPPORTED BY MORE THAN ADEQUATE JUSTIFICATION AND DO NOT IMPOSE A "SEVERE" BURDEN ON PLAINTIFFS' FIRST AMENDMENT RIGHTS.

The Tenth Circuit below found that "the petition process is a ballot access vehicle, as well as an avenue for political expression." Pet. App. A22. The court also acknowledged that "Colorado has a strong interest in ensuring both candidate elections and ballot issues are run fairly, efficiently, and honestly." *Id.* at A23

With respect to the three regulations struck down by the Tenth Circuit, however, its application of the flexible standard amounted to little more than lip service. The Tenth Circuit applied "exacting scrutiny" to Colorado's registration requirement because the requirement has a "discriminatory effect." *Id.* at A29. The Tenth Circuit applied "exacting scrutiny" to Colorado's badge requirement because the court considered the circulation of petitions to be analogous to distributing a handbill, and, therefore, ruled that *McIntyre* controlled. *Id.* at A32-A37. The Tenth Circuit also applied "exacting scrutiny" to the reporting requirements because "[m]uch like requiring identification badges, compelling the

disclosure of the identities of every paid circulator chills paid circulation, a constitutionally protected exercise." *Id.* at A40.

The principal error by the court below was its failure in determining, to the extent it actually made a determination, whether any of the regulations posed a "severe" burden on plaintiffs' First Amendment rights. *Timmons*, 117 S. Ct. at 1370; *Burdick*, 504 U.S. at 434. Its failure prevented it from properly determining that Colorado's "important regulatory interests are . . . sufficient to justify reasonable, nondiscriminatory restrictions," *Anderson*, 460 U.S. at 788; *Timmons*, 117 S. Ct. at 1370; *Burdick*, 504 U.S. at 434, as reflected in the regulations at issue. The following discussion shows that these regulations, appropriately considered, are clearly constitutional.

A. The requirement that petition circulators be registered voters.

The Tenth Circuit was able to apply "exacting scrutiny" to Colorado's registration requirement only because it viewed it as somehow "discriminatory." Under the Tenth Circuit's logic, however, any election-law requirement is "discriminatory" because it will necessarily "discriminate" against those persons who do not satisfy the requirement. The fact that there is a relatively large number of Coloradans who are qualified electors but who have not registered to vote in no way shows that the State is "discriminating" against those "persons who are not registered to vote." Pet. App. A29.

The registration requirement does not impose a "severe" burden on plaintiffs' First Amendment rights. To be eligible to register to vote in Colorado, a person must have only the barest minimum qualifications. He or she must be: 18 years

of age or older on the date of the next election; a citizen of the United States; and a resident of the precinct in which the person will vote 30 days immediately prior to the election. Colo. Rev. Stat. § 1-2-101.

Congress and the Colorado General Assembly have substantially eased the registration process. Persons can now register to vote anywhere federal benefits are offered. 42 U.S.C. § 1973gg. Coloradans can also register at a county clerk and recorder's office, Colo. Rev. Stat., § 1-2-202, and at driver's license facilities. Colo. Rev. Stat., § 1-2-213. Persons in the military and persons overseas can register by mail. Colo. Rev. Stat., §§ 1-2-208, 209. There were almost 1.9 million registered electors in Colorado at the time of trial, below. T.II.159.

Just as every step in the candidate nominating process requires that participants be registered voters,[8] so too, the State may reasonably require that those who "nominate" issues for the ballot also be registered. The registration requirement is also directly tied to a circulator's role as an integral part of the initiative process. Even the Tenth Circuit acknowledged that "[c]irculators assume personal responsibility to prevent irregularities in the process." Pet. App. A20. *See also supra* pages 24-26 (discussing, *inter alia*, the affidavit requirement). This Court has upheld registration requirements for voters. *Marston v. Lewis*, 410 U.S. 679 (1973). A fortiori, given the important role

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[8] For example, all delegates to county and state assemblies must be registered electors, Colo. Rev. Stat. § 1-4-602(5). Primary voters must be registered. Colo. Rev. Stat. §§ 1-4-103(4), 1-2-201. Candidates cannot be nominated by a party assembly for a primary unless they are registered electors. Colo. Rev. Stat. § 1-4-601(4)(a).

circulators play in Colorado's initiative process, Colorado has far more than a sufficient interest in requiring persons integrally involved in enacting constitutional amendments and statutes to register to vote when it is so easy to do so.

Colorado laws that prohibit such things as forging signatures or paying something of value to voters for their signatures are meaningless unless they can be enforced. If a potentially offending circulator is a resident, the Secretary of State can subpoena him or her to a hearing to look into the matter. Registration helps insure that circulators are in fact subject to the jurisdiction of the Secretary of State and Colorado courts. Registration also helps proponents of initiatives and the entities that hire circulators The registration requirement permits them to determine readily if circulators are Colorado residents by checking voter registration roles.

At trial, the elections officer for the Secretary of State testified about the problems confronting the State in enforcing its laws without the registration requirement. For a period of time, the registration requirement was suspended by court order.[9] During that time, in 1992, the Secretary of State secured the issuance of nine warrants for fraud against circulators involved with a particular petition. The State was unable to serve three of the warrants because the circulators

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[9] The United States District Court for the District of Colorado enjoined the Secretary of State from enforcing the registration requirement for a time in 1992. *American Constitutional Law Foundation v. Meyer*, No. 92-N-69 (D. Colo. Jan. 1992). This case was dismissed for lack of prosecution and the preliminary injunction was vacated. The district court's decision is unpublished. A description of the injunction and its vacation, however, can be found in *McClelland v. Meyer*, 900 P.2d 24, 35 n.13 (Colo. 1995).

were outside the State of Colorado. T.II.115. Of the remaining defendants, the State obtained convictions of three persons for forgery. *Id.* at 116. If the three out-of-state, non-registered circulators were registered in-state residents, they would have been easily subject to Colorado's jurisdiction and held accountable for their conduct.

The Tenth Circuit focused on the fact that Colorado's registration requirement prevented at least "400,000 qualified but unregistered voters" from circulating petitions. The flip side of this fact, ignored by the court below, is that there are nearly 2 million people who *are* eligible to circulate petitions in Colorado, and that the other half million can qualify by simply filling out a form at one of a large number of locations throughout the State.

The Tenth Circuit ignored one other important fact. Colorado originally required 8% of eligible voters to sign or circulate a petition to have that measure placed on the ballot.[10] Determining which of those signatures were those of eligible voters proved to be very difficult to do. As explained in the Colorado Legislative Council's analysis of the 1980 ballot measure that changed the requirement, Pet. App. E:

> The present procedure in which any qualified elector may be eligible to sign an initiative petition makes any challenge of the signatures on an initiative petition impractical because there is no official record of qualified electors. Without an inordinate expense of time and resources,

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[10] Colorado's initiative law, since its adoption in 1910, has required that the same qualifications apply to both petition circulators and signers.

> it is impossible for a citizen, organization, or even the Secretary of State to actually determine the validity of the 62,200 signatures now required to place an initiative petition on the statewide ballot.

Pet. App. E8. The 1980 amendment addressed this problem by requiring voters and circulators to be registered voters. "The amendment would place greater responsibility on the part of the person circulating petitions to determine whether the individual signing the petition is eligible to sign the petition. The proponents would have access to public records of registered electors and would ascertain the validity of their petitions prior to filing, thus reducing any possibility of challenge by those persons opposing the petition." *Id.* at E9. To ameliorate the effects of the registration requirement, the amendment made major concessions towards easing the initiative process, particularly reducing the number of signatures from 8% to 5%. According to the Legislative Council:

> The amendment would reduce the number of signatures needed to place an initiative measure on the ballot and provide more time in the summer preceeding [sic] the election for the collection of signatures. For the 1980 general election, for example, sponsors of statewide initiative measures must obtain in excess of 62,000 signatures in order to place an initiative measure on the statewide ballot. If the proposed amendment were in effect, less than 39,000 signatures would be required.

Id. Plaintiffs and others who are involved in the initiative process obtained a great benefit by the reduction in the

required number of signatures. They should not be permitted to use the First Amendment as a ratchet, taking what the State has given them while challenging as unconstitutional the small thing taken away from them in return: the addition of the minimal requirement that voters and circulators register to vote.

The registration requirement is not a "severe" burden on plaintiffs First Amendment rights, and the State has more than adequate justifications for imposing it. This Court should find it constitutional under the appropriate standard.

B. The requirement that petition circulators wear identifying badges.

The record in this case will not support a finding that the badge requirement is a significant burden on plaintiffs' First Amendment rights, let alone a "severe" burden. Jack Hawkins, one of plaintiffs' principal witnesses and an experienced petition circulator for labor union issues, testified that he had never been harassed as a result of wearing a badge. T.I.44. On direct, he could recall two others who had been. However, when he elaborated, it became apparent from his testimony that the harassment related to the circulation of petitions generally, not wearing badges. *Id.* at 44-45. *See also id.* at 47-48 (cross).

Another witness for the plaintiffs, Jon Baraga, who was also an experienced circulator involved in the legalization of hemp and other measures, offered general, non-specific testimony about people being afraid of wearing badges. *Id.* at 60. He testified, however, that he himself was not afraid to wear a badge. *Id.* David Aitken, an activist with the Libertarian party and experienced circulator, and a witness for the plaintiffs, testified that the badge requirement was "a minor nuisance." *Id.* at 117. Thomas Tancredo, a former

state representative, conservative activist and experienced circulator, was asked on direct what effect, if any, the badge requirement would have on his efforts. He responded that he could not say. *Id.* at 143. Nowhere during the trial was any concrete evidence introduced showing that any circulator was harassed because he or she wore a badge, or that someone was contacted in a place other than the place of circulation as a result of information gleaned from the badge. In fact, plaintiffs' own witnesses testified that they were harassed for circulating petitions in a similar manner as that testified to by Mr. Hawkins before the badge requirement was implemented. *Id.* at 93 (Mark Dale Culverhouse, Direct).

In contrast, the State offered evidence of the importance of the badge requirement. The Secretary of State's election officer testified that the Secretary received "several complaints" that came in writing and over the telephone concerning circulator fraud. T.II.102. She further testified that "[t]here was nothing we could do about the complaints." *Id.* When asked to explain, she responded:

> We didn't have any idea of what the circulators' names were. They could not be identified. Even the ones that were brought up in hearings, there was no identification, even when they had pictures of the circulators. So there was no way of knowing who was doing it.

Id. One State witness affiliated with the League of Women Voters, Wayne Knox, an elected state representative, and experienced petition circulator, testified that "the badge is a very beneficial requirement." T.II.191. He went on to explain:

> One reason is I think there's been a significant change that's taken place in petitioning as a result of paid petitioners now being allowed and being used more and more. And I think it's very important for the citizens being asked to sign a petition to be able to know is that person a paid petitioner or are they a volunteer petitioner, as well as identifying who this person is that's talking to them.

Id.

It is important to note that the record in this case shows that the General Assembly adopted the badge requirement in direct response to actual evidence of fraud and the State's then-inability to do anything about it. Representative Fleming, the House sponsor of Senate Bill 93-135 that adopted the badge requirement, explained on the floor of the Colorado House of Representatives during the debate over the legislation:

> And the issue of destruction of petitions. Again, I would submit to you -- - is an area where we again look at containing fraud. That is the -- the two main things we're attempting to do with 135, is to put together a clear timely process to allow the initiatives to make it to the ballot; those that have followed the process in the proper form. And secondly, to constrain fraud in this state.
>
> Last election cycle, there were nine warrants issued for fraud out there. We have only been able to serve on four because, unfortunately, we had no

identification as to where to find those other five individuals. And let me tell you, we did hear sufficient testimony in committee that fraud was occurring.

One striking piece of testimony I recall was a gentleman who himself was head of a petition drive. He had hired and paid those circulators out there. . . . The petitions were handed back to him. He was told he had some 32,000-plus signatures. When he sat down and counted them himself, he only found he had 26,000. So his own paid circulators had -- had frauded [sic] him.

These are the kinds of comments and letters and concerns and testimony we heard in the Business Affairs and Labor Committee. *That is why we have put in here the process for identifying who the circulators are, have record -- be identified by a name and an address so that when indeed there is this attempt to defraud the public out there, we have a way of -- of prosecuting these individuals.*

Pet. App. F5 (emphasis added).

The Tenth Circuit relied upon *McIntyre v. Ohio Elections Comm'n*, 115 S. Ct. 1511 (1995), in holding that Colorado's badge requirement is unconstitutional. "Circulating a petition is akin to distributing a handbill," the court concluded. Pet. App. A35. With all due respect to the Tenth Circuit, it is simply wrong on this point.

Petition circulators serve a critical role in the process by which initiatives are placed on the ballot. The 1980 amendment, discussed above, "place[d] greater responsibility on the part of the person circulating petitions to determine whether the individual signing the petition is eligible to sign the petition. The proponents [were given] access to public records of registered electors and [can] ascertain the validity of their petitions prior to filing, thus reducing any possibility of challenge by those persons opposing the petition." *Id.* at E9.

Circulators are required to submit detailed, notarized affidavits[11] showing compliance with a host of

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[11] Colo. Rev. Stat., § 1-40-111(2):

> To each petition section shall be attached a signed, notarized, and dated affidavit executed by the registered elector who circulated the petition section, which shall include his or her printed name, the address at which he or she resides, including the street name and number, the city or town, the county, and the date he or she signed the affidavit; that he or she has read and understands the laws governing the circulation of petitions; that he or she was a registered elector at the time the section of the petition was circulated and signed by the listed electors; that he or she circulated the section of the petition; that each signature thereon was affixed in the circulator's presence; that each signature thereon is the signature of the person whose name it purports to be; that to the best of the circulator's knowledge and belief each of the persons signing the petition section was, at the time of signing, a registered elector; and that he or she has not paid or will pay,

requirements. "The purpose of the affidavit is the assurance the circulators [are] aware of their important role in implementing all of the statutory safeguards and in assuring the validity of the signatures they collect." *Loonan v. Woodley*, 882 P.2d 1380, 1385 (Colo. 1994). They are not simply advocates for a measure and their critically important role in the initiative process more than obviates any advocacy interest circulators may have in wishing to preserve their anonymity.

The badge discloses nothing more personal than the name of the individual who is circulating the petition, and, if paid, the name and telephone number of the person employing the circulator. The circulator essentially acts as a representative for the electors who sign the petition by being responsible for insuring that the petition is properly executed and that the signer's signature will count. It is usually the circulator who approaches a citizen and asks him or her to sign the petition. It is illogical to conclude that the signer should not be informed of the name of the person who is acting on his or her behalf.

This Court in *McIntyre* overturned an "extremely broad [state] prohibition," 115 S. Ct. at 1521, outlawing the anonymous distribution of handbills. The Court expressly distinguished the case before it from one like the one at issue

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directly or indirectly, any money or other thing of value to any signer for the purpose of inducing or causing such signer to affix his or her signature to the petition. The secretary of state shall not accept for filing any section of a petition that does not have attached thereto the notarized affidavit required by this section. Any signature added to a section of a petition after the affidavit has been executed shall be invalid.

here: "We recognize that a State's enforcement interest might justify a more limited identification requirement." 115 S. Ct. at 1522. Justice Ginsburg, concurring, elaborated on this point:

> We do not . . . hold that the State may not in other, larger circumstances, require the speaker to disclose its interest by disclosing its identify. Appropriately leaving open matters not presented by McIntyre's handbills, the Court recognizes that a State's interest in protecting an election process "might justify a more limited identification requirement."

Id. at 1524 (Ginsburg, J., concurring). Colorado's badge requirement, and the reporting requirements discussed in the next section, are precisely that: limited identification requirements that protect Colorado's election process, nothing more. The badge requirement does not significantly burden plaintiffs' First Amendment rights and it is essential in punishing fraud and abuse by circulators. Speech which "is used as a tool for political ends does not automatically bring it under the protective mantle of the Constitution . . . . [T]he knowingly false statement and the false statement made with reckless disregard of the truth, do not enjoy constitutional protection." *Garrison v. Louisiana*, 379 U.S. 64, 75 (1964).

In *Martin v. Struthers*, 319 U.S. 141 (1943), this Court struck down a municipal ordinance that outlawed door-to-door solicitation. Similar to how this Court in *McIntyre* distinguished legitimate disclosure and identification requirements, the Court remarked:

> Without doubt a State may protect its citizens from fraudulent solicitation by requiring a stranger in the community, before permitting him publicly to solicit funds for any purpose, *to establish his identity and his authority to act for the cause which he purports to represent.*

Id. at 148 n.14 (quoting *Cantwell v. Connecticut*, 310 U.S. 296, 306 (1940); internal quotations omitted; emphasis added). This Court made a similar observation in *Riley v. National Federation of the Blind of North Carolina*, 487 U.S. 781, 799 n.11 (1988) ("nothing in this opinion should be taken to suggest that the State may not require a fundraiser to disclose unambiguously his or her professional status").[12] This Court in *McIntyre*, in contrasting Ms. McIntyre's individual political activity from organized, paid solicitation and political communication, acknowledged the "prophylactic effect of requiring identification of the source" of the information. 115 S. Ct. at 1522. *See also id.* at n.18 ("In addition, we emphasized in *Buckley* the prophylactic effect of requiring the source of communication be disclosed"; citing *Buckley v. Valeo*, 424 U.S. 1, 67 (1976)).

Colorado has a documented, demonstrated need to require petition circulators simply to identify themselves and for whom they work. Colorado has done precisely what this Court has said it can do to protect the integrity of the initiative process. Colorado's badge requirement should be constitutional under any standard, let alone the flexible standard which is appropriate in this case.

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[12] The Tenth Circuit dismissed this Court's statements in *Martin* and *Riley* as "dicta." Pet. App. A32.

C. The reporting requirements.

The Tenth Circuit upheld the affidavit requirement, Pet. App. A42-A44, but struck down the final report requirement to the extent to which the final report, filed at the time the petitions are filed with the Secretary of State, contains the names, addresses and amounts paid to paid circulators. *Id.* at A38-A41.[13] The Tenth Circuit did not explain why it is acceptable to require a petition circulator to disclose his or her name and address as part of an affidavit filed with the Secretary of State with the petition, but improper to require the same disclosure in a report filed with the Secretary of State at the same time. Before turning to the constitutionality of the reports generally, the State first notes that under *Uphaus v. Wyman*, 360 U.S. 72 (1958), a person has no basis to make a constitutional challenge to the forced disclosure of information that is already public. *Id.* at 80-81 & n.7.

Like the badge requirement, plaintiffs introduced nothing at trial that would establish that the reporting requirements present a "severe" burden on plaintiffs' First Amendment rights. Plaintiffs' witness Hawkins testified that "[i]t took time that I didn't think was real necessary," T.I.20, "in the neighborhood of about two hours a week." T.I.21.

The Tenth Circuit held that the reporting requirements should be subject to "exacting scrutiny" because they were conceptually similar to the badge requirement (by identifying the circulators) and, in that court's view, they were also analogous to the disclosure requirements at issue in *Buckley*.

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[13] *See* J.A. 33 for an example of an affidavit. Examples of monthly reports can be found at J.A. 45-51. An example of a final report can be found at J.A. 35-44.

Pet. App. A38-A39. Although this Court upheld the disclosure requirements at issue in *Buckley*, it did so applying an exacting scrutiny standard. 424 U.S. at 64-66. The disclosure requirements at issue in this case, however, are different from the disclosure requirements at issue in *Buckley*. This case does not involve the protection of "group association" or the preservation of "privacy of belief" of campaign contributors. *Id.* at 65-66. The identities involved here are those of circulators who are integrally involved in the election process. *See supra* pages 24-26 (discussing the role of circulators under Colorado law). This case thus involves "a more limited identification requirement" which this Court said was acceptable in *McIntyre*. 115 S. Ct. at 1522. *See also id.* at 1524 (Ginsburg, J., concurring).

The requirement for financial information called for in the reports places no additional burden on the circulators or their First Amendment rights because all that is disclosed is what they are paid and owed for doing their job, and the financial information called for only places a minimal administrative burden on the proponents who must report this information. T.I.21 (Hawkins). While financial disclosure requirements were upheld in *Buckley*, *see also McIntyre*, 115 S. Ct. at 1523, the financial information called for here is far less burdensome on First Amendment rights. Financial disclosure of contributions far more implicates associational rights than the disclosure of how much someone gets paid for doing the job of collecting signatures. This information, supplied monthly and at the time the petitions are filed with the Secretary, gives the press and the voters of Colorado a more complete picture of how money is being spent to get a measure on the ballot.

The essential purpose of the monthly reports is the identification of the circulators. With this information, the Secretary of State and the public know who is circulating for

which measures. If a problem arises with a particular circulator, the monthly reports, combined with the badge requirement, allow identification of the circulator and thus permit the Secretary of State to respond to the problem.

The badge and the reporting requirements represent the State's attempt to preserve the integrity of the initiative process and to inform the public on who is attempting to change Colorado law and how they are going about doing it. As this Court observed in *Munro v. Socialist Workers Party*, 479 U.S. 189, 195-96 (1986):

> Legislatures, we think, should be permitted to respond to potential deficiencies in the electoral process with foresight rather than reactively, provided that the response does not significantly impinge on constitutionally protected rights.

Colorado's registration and reporting requirements simply do not significantly impinge, let alone severely impact, the First Amendment rights of petition circulators or proponents in this State. Colorado asks this Court to uphold Colorado's reasonable, nondiscriminatory regulation of the initiative process -- a process created by the Colorado Constitution and jealously protected at all levels of her state government.

CONCLUSION

This Court should reverse the Tenth Circuit and hold that Colorado's registration, badge and reporting requirements are constitutional.

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